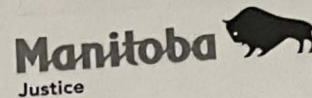


KING'S BENCH – SERVICE REQUEST FORM



Date: 30-05-2025
 Requestor: Evan Rosner
 Law firm:
 Address: 10-585 Corydon Ave Winnipeg, MB, CA
 R3L0P3

Phone No.: 2048991499
 area code + ph. no. - no parenthesis or spaces
 Email: evanroz@gmail.com

Please Note:
 Return the completed service request form to the court office where the file is located.
 For court locations and hours of operation visit: <https://www.manitobacourts.mb.ca/court-of-queens-bench/location-and-contact-info/>
 You will be contacted prior to the request being completed, and may be required to provide payment at that time.

Requestor to Complete (see instructions on following page):

File Information:
 To obtain file information go to www.manitobacourts.mb.ca, choose 'Registry' at the top of the home page, then from the menu provided follow the prompts. If the file number, document number(s) and name(s) are not provided below, a research fee will apply.

File Number: CI23-01-42500,
 Title of Proceedings: Forieg, Ehab vs Thorwin

Service(s) Requested: 1 – ORDER – Residential Tenancies Board (18-Aug-2023) • 2 – NOTICE OF GARNISHMENT & Affidavit after Judgment (18-Aug-2023) • 3 – Garnishee's Statement (13-Sep-2023) • 4 – Correspondence to Court re rejected cheque (17-Oct-2023) • 5 – Requisition for Cheque (17-Oct-2023)
Copy of Document(s):

Certified Copy: ☒ Yes 1 # of Certified Copies
 Requesting a: ☐ Divorce Certificate ☐ Grant of Probate Other:
 Delivery Format: ☐ Mail ☒ Pick up at Court Office ☐ Email (not available for certified copies)

For Office Use Only

☐ Copies 4 pgs or less: \$2.50 min
 5 pgs or more: \$1.00 for pg1 + \$0.50 subsequent pgs

15 = Total Pages

8-00

☐ # of Certified Copies, Divorce Certificate or Grant of Probate (\$30.00 each)

☐ Research Fee (\$10.00 plus copying fees)

☐ Reasons for Judgment (\$1.00 per page)

= Total Pages

The following fees are not applicable to a party to a proceeding or counsel of record:

Document Retrieval: file located ☒ court office (\$5.00) ☐ not in court office (\$10.00)

☐ Other:

TOTAL

5-00

Request Taken by: ID Reviewed: ☐ Type of ID Reviewed:

Fees Paid On: Receipt No. or LA Certificate No.:

Completed By: Jenny Date Completed: 02 June 25

\$13-00

FILE NO: C123-01-42500THE KING'S BENCH
WINNIPEG CentreEHAB FORIEH vs Thorwin property (5)

REQUISITION FOR CHEQUE

NAME OF PARTY MAKING APPLICATION FOR PAYMENT OUT:

EHAB FORIEH
(name of party)IS PAYMENT TO BE MADE TO LAWYER OF RECORD? ☐ YES ☒ NO

NAME & ADDRESS OF PARTY OR LAWYER WHERE PAYMENT IS TO BE MAILED:

(204) 890-5053
409-435 ballantrac Drive R3T6M7 WPG, M
Ehab Forieg DATE: OCT 05 2023

(for office use only)

ISSUE CHEQUE PAYABLE TO: Ehab Forieg

DATE RECEIVED	AMOUNT RECEIVED (Column A)	INTEREST DATE	INTEREST AMOUNT (Column B)
<u>Sep 15, 2023</u>	<u>\$ 945.00</u>		\$
	\$		\$
	\$	<u>OCT 10 2023</u>	\$ <u>0.00</u>
	\$		\$
	\$		\$
	\$		\$
SUB TOTAL (A)	<u>\$ 945.00</u>	SUB TOTAL (B)	<u>\$ 0.00</u>

[Signature]
Deputy Registrar SignatureOctober 10, 2023
Date of Payment OutPost Interest: ☒ YES ☐ NO
ONLY POST INTEREST IF BALANCE IS NILCheque Amount: \$ 945.00 dlCheque No: 12505Cheque Date: OCT 16 2023Mailed ☒Delivered ☐Processed By: vm

OCT 16 2023

THE KING'S BENCH

Winnipeg

Centre

BETWEEN:

EHAB FORIEL

-Claimant Tenant

-and-

THORWIN PROPERTIES

Defendant Landlord

AFFIDAVIT IN SUPPORT OF PAYMENT OUT OF COURT - NOTICE OF GARNISHMENT

I, EHAB FORIEL, of the (City/Town) of Winnipeg, in
The Province of Manitoba, PHARMACIST MAKE OATH AND SAY:
(occupation)

1. That the appeal period for the judgment has expired and no appeal is pending.
2. The amount of the outstanding debt under the judgment given is in favour of the creditor is in the amount of \$ 945-00 inclusive of interest and costs. This is authorization that any surplus funds standing in the court shall be returned to the debtor being garnished.
3. That the amount the garnishee paid into court is no more than the small claims limit (and add in the case of a small claims proceeding; any cost ordered by the small claims court officer or judge).
4. That at least 10 days has elapsed since the garnishee has made the payment into court and since the debtor was served with the notice of garnishment.
5. The notice of garnishment dated 18 AUG 12023 was served on the debtor
Thorwin PROPERTIES by Person I handed to her receptionist
(debtor being garnished) (indicate manner of service)
FRIDAY on 29/09/23
(indicate address served) (indicate date of service)
1274 Archibald street W, MB
6. That no other person has a claim to or interest in the money.

Sworn (or Affirmed) before me at the
City of Winnipeg
in the Province of Manitoba,
this 5th day of October, 2023

B. Beith

Deputy Registrar for King's Bench, or
A Commissioner for Oaths in and for
the Province of Manitoba
My Commission expires: _____

Ehab Foriel
Signature

EHAB FORIEL
Print Name

Sultors' Trust Master Record
Winnipeg Centre
CI23-01-42500
Account #40379

Plaintiff: FORIEG, EHAB
Defendant: THORWIN PROPERTIES

Date	Type	Cheque/Rec #	Amount	Order	Order Date	Details	Balance
15-Sep-2023	R	3801836	945.00	GO	18-Aug-2023	NATIONAL BANK OF CANADA	945.00

MANITOBA
Court of King's Bench
100 - 408 York Avenue
Winnipeg, Manitoba R3C 0P9



MANITOBA
Cour du banc du Roi
408, av. York, pièce 100
Winnipeg (Manitoba) R3C 0P9

4

Date: October 12, 2023

Court file number(s): C123-01-42500

To: Thorwin Properties
1274 Archibald Street
Winnipeg, MB. R2J 0Z3

FILED
KING'S BENCH

OCT 17 2023

LAW COURTS
WINNIPEG

Date of garnishment: 18 Aug. 2023

Date of cheque returned & cheque #: 03 Oct. 2023 - #001088

Cheque is returned for the following reason(s):

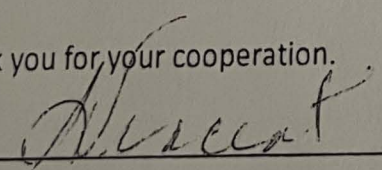
The following information is required on the cheque/cheque stub or supporting documents:

- ☐ Payable to Minister of Finance
- ☐ Date issued cannot be postdated and cannot be older than 6 months.
- ☐ Cheque is not properly signed.
- ☐ If for a Garnishment Order, the King's Bench file number and debtor's name is required.
King's Bench file number is format AB00-00-00000 (i.e. C118-01-12345)

- ☐ The garnishment is satisfied, Notice of Satisfaction was filed on
- ☐ The garnishment is terminated, Notice of Termination was filed on
- ☐ Garnishment order has been satisfied, no further payment is required
- ☐ The garnishment is not currently enforceable, Notice of Stay of Proceedings was filed on
- ☐ The garnishment has expired & is no longer enforceable, Garnishment order dated
- ☐ One cheque per debtor is required.
- ☒ As per The Garnishment Act and Court of King's Bench rules, total amount submitted cannot exceed that of the garnishment order. If you have submitted any more cheques please adjust the outstanding amount accordingly. The amount outstanding as of this day is \$0.00

☒ Other: Garnishment is paid in full

Thank you for your cooperation.


Deputy Registrar

Cc: To file
Enclosure

THORWIN PROPERTIES
1274 ARCHIBALD STREET
WINNIPEG, MANITOBA R2J 0Z3

NATIONAL BANK OF CANADA
179 PROVENCHER BLVD.
WINNIPEG, MB R2H 0G4

001088

001C

10/03/2023
DATE MM DD YYYY

PAY

**** NINE HUNDRED FORTY FIVE AND 00/100 DOLLARS

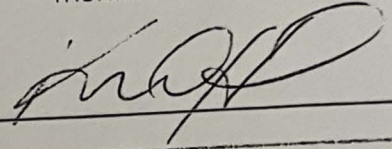
\$945.00*****

THORWIN PROPERTIES

TO THE
ORDER
OF

Minister of Finance
508-401 York Avenue
Winnipeg, MB R3C 0P8

PER:



⑈001088⑈ ⑆05031⑈006⑆ 09⑈572⑈27⑈

C7 23-01-42500

Documents for File: CI23-01-42500

FORIEG, EHAB vs THORWIN PROPERTIES

			<u>Doc Name</u>	<u>Notes</u>
<u>Num</u>	<u>Reg Date</u>	<u>Court</u>		
01	18-Aug-2023	01	ORDER - RESIDENTIAL TENANCIES BOARD	
02	18-Aug-2023	01	NOTICE OF GARNISHMENT & AFFT (AFTER JMT)	\$945.00, NATIONAL BANK OF CANADA, THORWIN PROPERTIES
03	13-Sep-2023	01	GARNISHEE'S STATEMENT	NATIONAL BANK OF CANADA, #2A
04	17-Oct-2023	01	CORRESPONDENCE - TO	\$945.00, NATIONAL BANK OF CANADA, THORWIN PROPERTIES, KB, 12OCT2023, REJECTED CHEQUE \$945.00, G/O PAID IN FULL

THE KING'S BENCH

Centre

BETWEEN:

ENAB FORIEG
- and -
Thorwin Properties
- and -

FILED
KING'S BENCH

SEP 13 2023

creditor

LAW COURTS
WINNIPEG

debtor

NATIONAL BANK OF CANADA garnishee

IF YOU DO NOT PAY THE AMOUNT REQUIRED BY THE ATTACHED NOTICE OF GARNISHMENT
WITHIN THE 7 DAY PERIOD, YOU MUST COMPLETE AND FILE THIS STATEMENT IN THE COURT.

This statement need not be completed if the garnishee pays the full amount required by the notice of
garnishment within the prescribed time.

GARNISHEE'S STATEMENT

(Circle the applicable numbers and complete the paragraphs)

1. I do not owe any debt due or payable to the debtor.

2. (a) I acknowledge that I owe or will owe the debtor the sum of \$ 945.00, payable on
SEPTEMBER 09, 2023 BANKDRAFT # 66726612
(date) (describe nature of debt and terms of payment)

(b) I owe the sum of \$ _____ and am concurrently paying this sum into Court.
(for use when the garnishee pays into court less than the maximum amount set out in the Notice of Garnishment)

3. I am not the debtor's employer.

4. I acknowledge that I am the debtor's employer and that the debtor is paid wages as follows:

\$	\$	Date of next pay day	Pay period
Gross amount of pay before deductions	Net amount of pay after deductions		

5. I have been served with another Notice of Garnishment against the debtor, the details of which
are as follows:

Name of Creditor	Name of court and judicial centre	Date of notice	Date of service on garnishee

6. I reside outside Manitoba and object on the ground that service outside Manitoba was improper
on the following grounds:

(particulars of your objections)

SEPTEMBER 09, 2023

Date

NATIONAL BANK OF CANADA

Signature of or for garnishee

Carole Thériault

(Name of garnishee)

4 Place Laval, 6e Etage, Bureau 600 Laval Québec H7N 5Y3

(Address)

450-975-4900

(Telephone)



**NATIONAL
BANK**

September 5, 2023

Carole Théorêt
Senior Representative
Tel: 1-866-975-4900 OPTION 1
Fax: 1-877-975-4930

COURT OF KING'S BENCH
MAIN FLOOR-408 YORK AVENUE
WINNIPEG, MANITOBA
R3C 0P9

Re: **Notice of Garnishment**
Court File No.: **# C123-01-42800**
42500

Dear Sir or Madam:

In response to a Notice of Garnishment dated AUGUST 18, 2023 relating to the above-mentioned file, please find attached a bank draft in the amount of \$ 945.00

As required, a copy of the Notice of Garnishment and our response will be kept on file.

The garnishment was fully satisfied. Therefore, we are closing our file. We would appreciate receiving copy of the Notice of Termination.

Should you have any questions, feel free to contact us.

Regards,

Carole Théorêt Signature numérique de Carole Théorêt
Date: 2023.09.05 10:43:20 -04'00'

File no: C123-01-42500

(2)

THE KING'S BENCH

Winnipeg Centre

BETWEEN:

EMAB FORIEG

creditor

- and -

AUG 18 2023 10:37
800 835763 1 01 23-01-42500 123
CHARGE/FEE PAID: 60.00

Thorwin Properties

debtor

- and -

NATIONAL BANK OF CANADA

garnishee

NOTICE OF GARNISHMENT
by general creditor
(Section 4 of The Garnishment Act)

FILED
KING'S BENCH

AUG 18 2023

LAW COURTS
WINNIPEG

EMAB FORIEG

2108-190 Smith Street

(204) 890-5053

(Name, address and telephone number of party filing)

APPROVED
&

File no: _____

THE KING'S BENCH

Centre

BETWEEN:

ENAB FORTEL

creditor

- and -

Thorwin Properties

debtor

- and -

NATIONAL BANK OF CANADA garnishee

NOTICE OF GARNISHMENT
by general creditor

TO: (name and address of garnishee)

179 PROVENCER BLVD, WPG, MB R2M0G4

A LEGAL PROCEEDING in this court between the creditor and the debtor has resulted in an order that the debtor pay a sum of money to the creditor. The creditor claims that you owe or will owe a debt to the debtor. The creditor has had this notice of garnishment directed to you as garnishee in order to seize certain debts that you owe or will owe to the debtor.

1. YOU ARE REQUIRED TO PAY to the Court of King's Bench

COURT OF KING'S BENCH
MAIN FLOOR - 408 YORK AVENUE
WINNIPEG, MANITOBA R3C 0P9
CANADA

at the following address: _____

- (a) WITHIN SEVEN DAYS after this notice is served on you, all debts due at the time of service, from you to the debtor, other than wages;
- (b) WITHIN SEVEN DAYS after they become payable, all debts that are accruing due as of the date of service of this notice on you; and
- (c) WITHIN SEVEN DAYS after they become payable, all wages that become due or payable by you to the debtor within one year after this notice takes effect. Under subsection 4(2) of The Garnishment Act, the garnishment of wages takes effect on the first Monday following the day it is served;

subject to the exemptions provided by The Garnishment Act. The maximum amount you are required to pay is not to exceed \$ 945.00.

CHEQUES MUST BE MADE PAYABLE TO THE MINISTER OF FINANCE

File no: _____

NOTICE OF GARNISHMENT TO ENFORCE MAINTENANCE PAYMENTS, A RESTITUTION ORDER, A FORFEITED RECOGNIZANCE ORDER OR AN ORDER IMPOSING A FINE TAKES PRIORITY OVER THIS NOTICE OF GARNISHMENT.

2. IF YOU DO NOT PAY within 7 days after service of this notice on you, or if you pay an amount that is less than the maximum amount, you are required within that time to file with the court the garnishee's statement attached to this notice.
3. THIS NOTICE OF GARNISHMENT REMAINS IN EFFECT, with respect to garnishment of wages, until the earliest of the following occurs:
 - (a) the garnishee pays the amount shown into court;
 - (b) this notice is discontinued or revoked by the court;
 - (c) the debtor ceases to be employed by the garnishee;
 - (d) one year passes from the date this notice takes effect.

IF YOU FAIL TO OBEY THIS NOTICE, THE COURT MAY MAKE AND ENFORCE AN ORDER AGAINST YOU for payment of the amount set out above and the costs of the creditor.

IF YOU MAKE PAYMENT TO ANY PERSON OTHER THAN AS REQUIRED BY THIS NOTICE, YOU MAY BE LIABLE TO PAY AGAIN.

IF THIS NOTICE OF GARNISHMENT BINDS WAGES AND THE DEBTOR CEASES TO BE EMPLOYED BY YOU, YOU MUST ADVISE THE COURT AND THE CREDITOR IN WRITING.

August 18, 2023
Date

Issued by

[Signature]
Deputy Registrar

Address of court office

COURT OF KING'S BENCH
MAIN FLOOR - 408 YORK AVENUE
WINNIPEG, MANITOBA R3C 0P9
CANADA

creditor's address

2108-190 Smith Street
(204) 890-5053

telephone number

debtor's FULL NAME and address

Thornin Properties

1274 ARCHIBALD ST, WPG MB
R2J0Z3

TO THE CREDITOR, THE DEBTOR AND THE GARNISHEE

Any party can make a motion to the court to determine any matter in relation to this notice of garnishment.

File no: _____

THE KING'S BENCH

Centre

BETWEEN:

ENAB FORIEG

creditor

- and -

Thorwin Properties

debtor

- and -

NATIONAL BANK of CANADA garnishee

IF YOU DO NOT PAY THE AMOUNT REQUIRED BY THE ATTACHED NOTICE OF GARNISHMENT WITHIN THE 7 DAY PERIOD, YOU MUST COMPLETE AND FILE THIS STATEMENT IN THE COURT.

This statement need not be completed if the garnishee pays the full amount required by the notice of garnishment within the prescribed time.

GARNISHEE'S STATEMENT

(Circle the applicable numbers and complete the paragraphs)

1. I do not owe any debt due or payable to the debtor.

2. (a) I acknowledge that I owe or will owe the debtor the sum of \$ _____, payable on

(date)

(describe nature of debt and terms of payment)

(b) I owe the sum of \$ _____ and am concurrently paying this sum into Court.
(for use when the garnishee pays into court less than the maximum amount set out in the Notice of Garnishment)

3. I am not the debtor's employer.

4. I acknowledge that I am the debtor's employer and that the debtor is paid wages as follows:

\$ _____	\$ _____	_____	_____
Gross amount of pay before deductions	Net amount of pay after deductions	Date of next pay day	Pay period

5. I have been served with another Notice of Garnishment against the debtor, the details of which are as follows:

Name of Creditor

Name of court and
judicial centre

Date of notice

Date of service
on garnishee

6. I reside outside Manitoba and object on the ground that service outside Manitoba was improper on the following grounds:

(particulars of your objections)

Date

Signature of or for garnishee

(Name of garnishee)

(Address)

(Telephone)

File no: _____

THE KING'S BENCH

Centre

BETWEEN:

ENAB FORIEG

creditor

- and -

Thorwin Properties

debtor

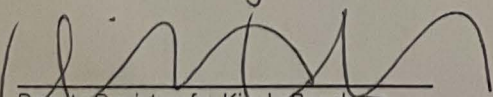
AFFIDAVIT FOR GARNISHMENT

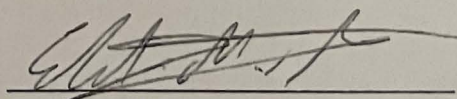
I, ENAB FORIEG of the CITY of Winnipeg
(name of creditor) (city, town, etc.) (name of city)

in the Province of Manitoba, MAKE OATH AND SAY:

- I have knowledge of the facts herein deposed to, except where same are stated to be based upon information and belief.
- An order was pronounced on the 12 day of JUNE, 2023, whereby the
(date) (month) (year)
above-named debtor was ordered to pay to the above-named creditor the sum of \$ 815.00
and the same is still wholly unsatisfied.
- Payments in the following amounts have been made: \$ 0.
- That as of this date \$ 815.00 remains payable, including interest plus \$ 130.00
garnishment costs for a total amount of \$ 945.00.
- I am informed and believe that NATIONAL BANK OF CANADA
(name of garnishee)
of 179 PROVENCHER BLVD, WPG, MB is or will become indebted to the
(address of garnishee)
above-named debtor, and that this debt is in the nature of _____. My source
(wages, bank account)
of this information is _____
(i.e. personal knowledge, disclosure, etc.)

Sworn (or Affirmed) before me at the
CITY of Winnipeg
in the Province of Manitoba,
this 18 day of August, 2023


Deputy Registrar for King's Bench, or
A Commissioner for Oaths in and for
The Province of Manitoba
My Commission expires: _____


Signature of Deponent

KING'S BENCH #: CI23-01-42500

(P)

THE COURT OF KING'S BENCH

BETWEEN:

EMAB FORIEL

TENANT(s)

AUG 18 2023 10:38

600 835763 2 CI 23-01-42500 124

CHARGE/FEE PAID:

30.00

- AND -

Thorwin Properties

LANDLORD

FILED
KING'S BENCH

AUG 18 2023

ORDER

LAW COURTS
WINNIPEG

FILED PURSUANT TO THE RESIDENTIAL TENANCIES ACT

FILED BY;

EMAB FORIEL

2108 - 190 Smith Street

(ADDRESS)

WINNIPEG

CITY

R3C 1J8

POSTAL CODE

(204) 890-5053

Name:

TELEPHONE NUMBER;

APPROVED
E.A.A.

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN:

Ehab Forieg

Tenant

- and -

Thorwin Properties

Landlord

ORDER

ADDRESS OF RENTAL UNIT:

2108 - 190 Smith Street
Winnipeg MB R3C 1J8The Residential Tenancies Branch held a hearing on **May 24, 2023**.

Appearances: Tenant

Yes

Landlord

YesBy authority of Section 154 of *The Residential Tenancies Act*, the director orders that:

The landlord shall pay the tenant \$815.00 on or before July 4, 2023.

June 12, 2023

Date

J. Thorne-Finch

Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than **July 4, 2023**. The filing fee is \$50.00, payable in cash, certified cheque or money order to The Minister of Finance when the appeal is filed. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

This Order, including the Reasons for Decision, is a matter of public record.